جامعة خليفة
Khalifa University

Tax Invoice

Registration No. 100503552000003
P.O. Box 127788
Abu Dhabi, United Arab Emirates

Bill To
CSR SPV 1 RSC LTD
5th Floor,Al Sila Tower/Abu Dhabi Global Market Square/Al Maryah Island, PO Box 45005
Abu Dhabi, United Arab Emirates
VAT Registration No
Not Registered

Remit To
P.O. Box 127788 , Abu Dhabi, United Arab Emirates

Invoice	Document Num.
101001341	101001341
Invoice Date	**Reference**
15-SEP-22	101001341
Customer Number	**Customer Location**
847-G6005	UAE18607229

Terms	Currency	Rate	Due Date	Customer Contact	Phone	Fax
30 NET	AED	1	15-OCT-22		971 2 413 6744	

No.	Description	Qty	Tax	Tax Rate	Unit Price	Extended Amount
1	Charges for the Mubadala Summer Bootcamp 2022 held in Khalifa University on Aug 15 - 19, 2022 As per Collaboration Agreement MDC\2741866_2	1	Yes	5 %	157,000.00	157,000.00
1.1	VAT Line			5 %	0.00	7,850.00

BANK DETAILS	
Bank Name	FIRST ABU DHABI BANK
Branch Name	ABU DHABI KHALIFA ST
A/C No.	4021003284369083 KHALIFA UNI OF SCIE N TECH TSA REV
IBAN	AE030354021003284369083
SWIFT Code	NBADAEAAXXX

Subtotal	157,000.00
Tax	7,850.00
Shipping	0.00
Total	164,850.00

TOTAL	One Hundred Sixty-Four Thousand Eight Hundred Fifty Dirhams And Zero Fils*****

Special Instructions

Please quote the invoice number and the customer name with your payment / bank transfer to ensure proper credit to your account. If you have any questions concerning this invoice, please contact:**KUAccountReceivables@ku.ac.ae**.

جامعة خليفة
Khalifa University
Finance Dept.

Authorized Signatory

THANK YOU

EXECUTION DOCUMENT:MDC\2741866_2

COLLABORATION AGREEMENT

CSR SPV 1 RSC LTD

and

KHALIFA UNIVERSITY

CONFIDENTIAL

f.sh
FAY

CONTENTS

Clause **Page**

PART A – INTERPRETATION 1
1. Interpretation 1
PART B – COLLABORATION 5
2. Project 5
3. Payment – not applicable 5
PART C – PROTECTIONS 5
4. Regulatory Compliance 5
5. Intellectual Property Rights 5
6. Confidentiality 6
7. Data Protection 7
8. Governance and Meetings 8
9. Representations, Warranties and Undertakings 9
PART D – LIABILITY 9
10. Force Majeure and Other Relief Events 9
11. Limitations of Liability 10
PART E – TERM AND TERMINATION 10
12. Term 10
13. Termination 10
14. Consequences of Termination 11
PART F – MISCELLANEOUS 11
15. Announcements 11
16. Assignment and Subcontracting 12
17. Notices 12
18. Entire Agreement 12
19. Disputes 12
20. General 13
21. Governing Law 14

Signatories 15

Schedule

1. Project Description 16
2. Governance 17

f.sh FAY

THIS AGREEMENT is made on 19 August 2022

BETWEEN:

(1) **CSR SPV 1 RSC LTD,** a Special Purpose Vehicle company, whose address is P.O. Box 45005, Abu Dhabi, United Arab Emirates **("CSR");** and

(2) **KHALIFA UNIVERSITY,** whose address is P.O Box 127788 Abu Dhabi, United Arab Emirates **("KU")**

each a **party** and together the **parties**.

BACKGROUND:

(A) The parties wish to establish a framework to govern their respective rights and obligations in relation to the Project.

(B) This Agreement sets out the terms and conditions upon which the parties have agreed that their collaboration for the Project may take place.

PART A – INTERPRETATION

1. INTERPRETATION

1.1 Unless expressly stated otherwise, in this Agreement:

Affiliate means, in relation to a party, each other entity which directly or indirectly Controls, is directly or indirectly Controlled by or is under direct or indirect common Control with, that party from time to time;

Agreement means this agreement and its Schedules;

Applicable Laws means all applicable law, enactments (as interpreted in accordance with Clause 1.2), regulations, regulatory policies, regulatory guidelines, industry codes, regulatory permits and regulatory licences which are in force from time to time;

Business Day means a day (other than a Saturday, Sunday or public holiday) on which banks in the UAE are generally open for normal business;

CSR Data means all data (including Personal Data), information, text, drawings, records, documents and other materials which are embodied in any medium (including any electronic, optical, magnetic or tangible medium) that are either owned, processed, generated, held, received or originated by or on behalf of CSR pursuant to this Agreement;

CSR Group means:

(a) CSR; and

(b) each Affiliate of CSR from time to time;

CSR IP means:

(a) the CSR Data; and

f.sh
FAY

(b) all Intellectual Property Rights owned by or licensed to CSR as at the Effective Date including any other Intellectual Property Rights owned or acquired by CSR after the Effective Date (but excluding the Developed Work);

Confidential Information means any and all information disclosed, generated or received under or in connection with this Agreement (including the existence of this Agreement), whether furnished before or after the Effective Date of this Agreement, which concerns the business or operations of the Disclosing Party or any of its Affiliates whether:

(i) received by a Recipient directly from the Disclosing Party or from any other person; or

(ii) generated or compiled by a Recipient and shall include all summaries, notes, memoranda and any other documents executed by the relevant Recipient to the extent they contain that information,

in each case, in any medium or format whatsoever (whether in oral, written or electronic form) and whether marked "confidential" or not;

Contract Year means a period of 12 months commencing on the Effective Date or on an anniversary of the Effective Date;

Control means, in relation to a person, the direct or indirect ownership of more than 50% of the voting capital or similar right of ownership of that person or the legal power to direct or cause the direction of the general management and policies of that person, whether through the ownership of voting capital, by contract or otherwise, and **Controls** and **Controlled** shall be interpreted accordingly;

Disclosing Party means, in relation to the Confidential Information of a party, that party;

Dispute means each dispute between the parties arising under or in connection with this Agreement;

Dispute Resolution Procedure means the procedure for the resolution of Disputes specified in Clause 19;

Effective Date means 15 August 2022;

Force Majeure Event has the meaning given to it in Clause 10.1;

KU Data means all data (including Personal Data), information, text, drawings, records, documents and other materials which are embodied in any medium (including any electronic, optical, magnetic or tangible medium) that are either owned, processed, generated, held, received or originated by or on behalf of KU pursuant to this Agreement; and

KU IP means:

(a) KU Data; and

(b) all Intellectual Property Rights owned by or licensed to KU as at the Effective Date including any other Intellectual Property Rights owned or acquired by KU after the Effective Date.

Good Industry Practice means, at any time during the Term, the exercise of reasonable skill, care, prudence, efficiency, foresight and timeliness which would at that time be expected from a reasonably and suitably skilled, trained and experienced person carrying out activities the same as, or similar to, the activities being performed under this Agreement;

f.sh
FAY

Intellectual Property means in relation to a party, its trademarks, service marks, trade names, domain names, get-up, logos, patents, inventions, registered and unregistered design rights, copyrights, moral rights, database rights and all other similar rights in any part of the world including, where such rights are obtained or enhanced by registration, any registration of such rights and applications and rights to apply for such registrations;

Intellectual Property Rights means:

(a) copyright (including rights in computer software), patents, trade names, database rights and rights in trademarks, designs, know-how and confidential information (whether registered or unregistered);

(b) applications for registration, and the right to apply for registration, for any of these rights; and

(c) all other intellectual property rights and equivalent or similar forms of protection existing anywhere in the world;

Loss means each loss, damage, fine, penalty, cost, expense or other liability (including legal and other professional fees), and **Losses** shall be interpreted accordingly;

Personal Data means any information relating to an identified or identifiable natural person and any other information that constitutes personal data or personally identifiable information under any Privacy Laws, including a person's full name, contact details, official identification, identification number, and health data;

Privacy Laws means all Applicable Laws relating to Personal Data, privacy and data protection in the UAE and any other relevant jurisdiction;

Project means Mubadala Summer Camp 2022 in relation to which the parties will collaborate in accordance with this Agreement, as further described in Schedule 1;

Project Records means all material, data, information, text, drawings, records, documents and other materials which are embodied in any medium (including any electronic, optical, magnetic or tangible media) generated by a party under this Agreement;

Recipient has the meaning given to it in Clause 6.1;

Regulator means each person having regulatory or supervisory authority over all or any part of (a) CSR, or (b) matters relating to the Project;

Relationship Management Committee means a committee comprising representatives of each party, including the Relationship Managers;

Relationship Manager means each party's representative appointed in accordance with Clause 8. As at the Effective Date, the parties' respective Relationship Managers are as set out in Schedule 2;

Tax means any kind of tax, duty or levy or any similar charge (including value added tax and any goods and services tax), whether or not similar to any in force at the Effective Date, and whether of UAE or elsewhere, and any related fine, penalty, interest or other amount;

Term means the period from the Effective Date until 19 August 2022;

Third Party means each person or entity which is not a party to this Agreement;

UAE means the United Arab Emirates;

f.sh
FAY

VAT means any value added tax as may be applicable pursuant to Applicable Laws in the UAE from time to time; and

1.2 In this Agreement, each reference, express or implied, to a law (which includes any legislation in any jurisdiction) includes:

(a) that law as amended, extended or applied by or under any other law (before, on or after the execution of this Agreement);

(b) any law which that law re-enacts (with or without modification); and

(c) any subordinate legislation made (before, on or after the execution of this Agreement) under that law, including (where applicable) that law as amended, extended or applied as described in Clause 1.2(a), or under any law which it re-enacts as described in Clause 1.2(b).

1.3 In this Agreement:

(a) each reference to a **person** includes a body corporate, unincorporated association of persons (including a partnership), government, state, agency, organisation, and any other entity whether or not having a separate legal personality and an individual, his estate and personal representatives;

(b) subject to Clause 16, each reference to a party to this Agreement includes a reference to the successors or assigns (immediate or otherwise) of that party;

(c) words expressed in the singular shall include the plural and vice versa;

(d) any reference importing a gender includes the other genders;

(e) any reference to a time of day is to Abu Dhabi time;

(f) any reference to writing includes typing, printing, lithography and photography but excludes any form of electronic communication, provided that each party may send general communications in relation to this Agreement;

(g) each reference to a document is to that document as amended, varied, assigned or novated from time to time otherwise than in breach of this Agreement or that document;

(h) each reference to a Clause, paragraph or Schedule is to a clause or paragraph of, or a schedule to, this Agreement;

(i) the Schedules form part of this Agreement; and

(j) the headings do not affect the interpretation of this Agreement.

1.4 If there is any conflict or inconsistency between any of:

(a) a term in the main part of this Agreement;

(b) a term in any of the Schedules; and

(c) any term included in any other document incorporated by reference into this Agreement,

the term falling into the category first appearing in the list above shall, unless expressly stated otherwise, take precedence.

f.sh
FAY

1.5 Specific words indicating a type, class or category of thing do not restrict the meaning of general words following specific words, such as general words introduced by the word other or a similar expression. Similarly, general words followed by specific words shall not be restricted in meaning to the type, class or category of thing indicated by the specific words. The words **including** and **include** shall mean including without limitation and include without limitation, respectively.

1.6 In the Schedules, capitalised terms that are not defined in Clause 1.1 shall have the meaning given to them in the relevant Schedule.

1.7 Clauses 1.2 to 1.6 apply unless this Agreement expressly states otherwise.

PART B – COLLABORATION

2. PROJECT

2.1 The parties shall co-operate by way of collaborating on the Project.

2.2 Each party shall:

(a) perform the obligations allocated to it in the Project Description;

(b) use reasonable care and skill in performing such obligations;

(c) comply with Good Industry Practice;

(d) comply with all Applicable Laws;

(e) if on the other party's premises, comply with that party's health and safety and site regulations and any other applicable policies made known to it from time to time; and

(f) ensure that it uses employees or agents in performing its obligations under the Project Description who are suitably qualified and experienced.

3. PAYMENT

The parties agree the fees associated with the Project are a total of AED 157,000 + 5% VAT. All fees are inclusive of delivery charges. Invoices must only be raised following delivery of the requirement and will be paid in accordance with the terms of this Agreement.

PART C – PROTECTIONS

4. REGULATORY COMPLIANCE

4.1 Each party shall comply with all Applicable Laws in performing its obligations under this Agreement.

4.2 Each party shall continue to hold all regulatory approvals from Regulators and any licenses, consents and permissions which are necessary in order for it to perform its obligations under this Agreement.

4.3 Each party shall promptly upon request of the other parties provide to the other parties all information and reasonable assistance required by any Regulator.

5. INTELLECTUAL PROPERTY RIGHTS

5.1 Prior written consent of CSR should be obtained prior to placing CSR's Intellectual Property on any promotional or marketing collateral by KU except as expressly permitted under this Agreement.

f.sh
FAY

5.2 Each party shall retain all its Intellectual Property used as part of this Agreement.

5.3 Each party acknowledges that the other party is the exclusive owner of its Intellectual Property and that nothing in this Agreement grants the other party any right, title and/or interest in and to the other party's Intellectual Property other than as expressly provided for in this Agreement. Each party further confirms that any goodwill derived from its respective use of the other party's Intellectual Property will accrue to and be for the benefit of that other party who owns that Intellectual Property.

5.4 Each party may revoke the right granted under Clause 5.3 if the other party breaches its obligations under the terms of this Agreement and uses the other party's Intellectual Property in a manner or form or in any medium not expressly approved and permitted in writing by the owner of such Intellectual Property.

5.5 The parties acknowledge and agree that if CSR pays for the creation of Intellectual Property, such Intellectual Property shall belong to CSR.

5.6 Each party undertakes not to take any steps to register any Intellectual Property belonging to or used by the other party.

5.7 Each party acknowledges the high international reputation, image and prestige of the other party's Intellectual Property and the commercial importance of the other party's Intellectual Property to the other party. Each party further acknowledges that any act or omission by it (including but not limited to a breach of this Clause 5), which damages, harms or dilutes in any manner the reputation, image or prestige of the other party will be of serious detriment to the business and operations of the other party and that the other party may seek damages, injunctive relief or other legal remedy if such damage is caused.

5.8 Upon termination or expiry of this Agreement for any reason whatsoever, each party shall immediately cease and desist from using the other party's name and Intellectual Property in relation to any presentations or promotions to be viewed externally and shall return to the other party all confidential information, documents, designs, logos and other proprietary information and material regarding and relating to the other party's Intellectual Property, including all copies.

5.9 After termination (howsoever caused) or expiry of this Agreement each party shall cease to have the right to use any name or Intellectual Property connected with the other party and any third party name, logo or trade mark used in connection with the Project.

6. CONFIDENTIALITY

6.1 Each party (a **Recipient**) undertakes to the Disclosing Party to treat as confidential all Confidential Information of the Disclosing Party.

6.2 The Recipient may use the Confidential Information only for the purposes of and in accordance with this Agreement. The Recipient may, with the Disclosing Party's prior written consent, which shall not be unreasonably withheld or delayed (and which includes consent given in this Agreement), provide its employees, directors, subcontractors and professional advisers and to any other party to whom this Agreement expressly permits disclosure (**Permitted Users**) with access to the Confidential Information on a strict "need-to-know" basis only. The Recipient shall ensure that each of its Permitted Users is bound to hold all Confidential Information in confidence to the standard required under this Agreement. Where a Permitted User is not an employee or director of the Recipient (and is not under a professional duty to protect confidentiality), the Recipient shall ensure that the Permitted User shall enter into a written confidentiality undertaking with the Recipient on substantially equivalent terms to this Agreement, a copy of which shall be provided to the Disclosing Party upon request.

f.sh
FAY

6.3 This Clause 6 shall not apply to any information which:

(a) is in or subsequently enters the public domain other than as a result of a breach of this Clause 6 or a breach of equivalent confidentiality provisions of a Permitted User;

(b) has been or is subsequently received by the Recipient from a Third Party which is under no confidentiality obligation in respect of that information;

(c) has been or is subsequently independently developed by the Recipient without use of the Disclosing Party's Confidential Information; or

(d) was previously known to the Recipient free of any obligation to keep it confidential.

6.4 Each Permitted User may disclose Confidential Information where that Permitted User (or, where the Permitted User is an individual, his or her employer or any Affiliate of his or her employer) is required to do so by law or by any competent regulatory authority. In these circumstances, the Recipient shall give the Disclosing Party prompt advance written notice of the disclosure (where lawful and practical to do so) so that the Disclosing Party has sufficient opportunity (where possible) to prevent or control the manner of disclosure by appropriate legal means and shall disclose only that portion of the Confidential Information that the Recipient, in the judgment of its counsel, is legally required to be disclosed and will use its all reasonable efforts to ensure that all Confidential Information so disclosed will be accorded confidential treatment.

6.5 This Clause 6 shall remain in full force and effect notwithstanding any termination of this Agreement. Confidential Information disclosed pursuant to this Agreement shall be subject to this Agreement for a period of six years from the date of termination or expiry of this Agreement.

7. DATA PROTECTION

7.1 Each Party (the **Receiving Party**) undertakes to comply fully with all Privacy Laws which apply to the treatment of any data relating to individuals provided by another Party (the **Data Discloser**) pursuant to this Agreement, and the Receiving Party shall procure that its directors, officers, employees and contractors do the same.

7.2 The Receiving Party acknowledges that the data is the property of the Data Discloser or its licensors and that all Intellectual Property Rights in or to the data shall vest in the Data Discloser or its licensors unconditionally and immediately on their creation, as applicable.

7.3 The Receiving Party shall (and shall procure that its directors, officers, employees and contractors shall) to the extent any data enters the Receiving Party's possession for any reason:

(a) comply with all instructions provided by the Data Discloser in relation to that data;

(b) comply with any data protection policy issued by the Data Discloser from time to time;

(c) not do anything which places the Data Discloser in breach of its obligations under the Privacy Laws;

(d) only use data as necessary for the performance of its obligations under this Agreement and not use the data for any other purpose or in any way contrary to any Privacy Laws or the Data Discloser's instructions;

(e) implement appropriate security, technical and organisational procedures in respect of the integrity and confidentiality of the data whilst in its possession so as to ensure that the data is protected from breach, loss, accidental or unlawful disclosure, unauthorised alteration or

f.sh
FAY

corruption, in each case in accordance with Privacy Laws and the instructions of the Data Discloser;

(f) ensure only authorised personnel with a need to know have access to the data and only on the basis of securing appropriate confidentiality and other undertakings from such personnel to comply with this Agreement in respect of data;

(g) not transfer, export, transit, route, host or store the data outside of the UAE in any way (including via any cloud arrangement);

(h) not disclose data to any Third Party without the prior written consent of the Data Discloser except:

(i) to employees to whom disclosure is strictly necessary in order for the performance of its obligations under this Agreement; and/or

(ii) if required to do so by any Applicable Laws;

(i) transfer any data held by the Receiving Party to the Data Discloser or its nominee in such format as reasonably required by the Data Discloser at any time including upon termination or expiry of this Agreement, whether in whole or in part, or as required by the Data Discloser; and

(j) promptly permanently and securely delete all electronic copies of the data in the possession of the Receiving Party or held on behalf of the Receiving Party upon termination or expiry of this Agreement, whether in whole or in part, or as required by the Data Discloser.

7.4 The Receiving Party shall promptly notify the Data Discloser in writing of any breach or potential breach of the provisions of this Clause 7 with all information in the Receiving Party's possession regarding such breach or potential breach. The Receiving Party must not make any announcement or other communication in respect of such breach without the Data Discloser's prior written consent.

7.5 The Receiving Party shall promptly comply with any instruction given by the Data Discloser to remove any member of the Receiving Party's personnel from being involved with the Project where that person has breached or caused a breach of this Clause 7.

8. GOVERNANCE AND MEETINGS

8.1 Each party shall comply with its obligations set out in Schedule 2. Without limiting the foregoing, each party shall, on the Effective Date, appoint a Relationship Manager Mr. Basem Saif Mohamed Al Shaabi and appropriately qualified representatives to the Relationship Management Committee Dr. Ebrahim AlHajri , Dr.Ahmed Shoaibi and Dr. Mohamed Saeed Al Shehhi. Each party shall notify the other in writing promptly in the event of any change to these appointments.

8.2 Each party shall ensure that the Relationship Manager and the Relationship Management Committee members appointed by it shall perform the activities and responsibilities assigned to them in, and in accordance with, Schedule 2.

8.3 Without prejudice to Clauses 8.1 and 8.2, to enable the parties to maximise the benefits of their collaboration, each party shall:

(a) engage the other in planning discussions in relation to the Project from time to time;

(b) keep the other party informed about its own progress in relation to the Project Description;

f.sh
FAY
S.f

(c) facilitate regular discussions between appropriate members of its personnel and those of the other party in relation to the Project Description, including in relation to:

(i) performance and issues of concern in relation to the Project Description;

(ii) new developments and resource requirements;

(iii) compliance with deadlines; and

(iv) such other matters as may be agreed between the parties from time to time;

(d) supply to the other party information and assistance reasonably requested by it relating to the Project Description as is necessary to enable that other party to perform its own obligations in relation to the Project Description; and

(e) review documentation, including draft specifications or service descriptions or other technical documentation, for use when performing its obligations in relation to the Project Description, as soon as reasonably practicable at the request of the other party, and notify it of any errors or incorrect assumptions made in any such documents so far as it is aware.

9. REPRESENTATIONS, WARRANTIES AND UNDERTAKINGS

Each party represents and warrants to the other parties that:

(a) subject to Clause 12.2, it has the power to enter into this Agreement and to perform its obligations under it and has taken all action necessary to authorise signature and the performance of its obligations;

(b) this Agreement constitutes legal, valid and binding obligations of that party in accordance with its terms; and

(c) authorisations, licences or consents from, and notices or filings with, each Regulator or other governmental or other authority that are necessary to enable it to enter into and perform its obligations under this Agreement have been obtained or made (as the case may be) and are in full force and effect and all conditions of each authorisation, licence, consent, notice or filing have been complied with.

PART D – LIABILITY

10. FORCE MAJEURE AND OTHER RELIEF EVENTS

10.1 No party shall be liable to the other parties for any delay or non-performance of its obligations under this Agreement arising directly from any of the following cause or causes beyond its reasonable control and unable reasonably to be planned for or avoided: act of God, governmental act, act of terrorism, war, earthquake, epidemic, flood, embargo, riot, sabotage, strike (other than of its own employees), explosion or civil commotion (**Force Majeure Event**), provided that the affected party:

(a) promptly notifies the other parties in writing of the cause of the delay or non-performance and the likely duration of the delay or non-performance; and

(b) uses all reasonable endeavours to limit the effect of that delay or non-performance on the other parties.

f.sh
FAY
SP

10.2 In each such case, subject to Clauses 10.1(a) and 10.1(b), the performance of the affected party's obligations, to the extent affected by the cause, shall be suspended during the period that the cause persists.

11. LIMITATIONS OF LIABILITY

11.1 Nothing in this Agreement excludes or limits a party's liability:

(a) for fraud, theft or wilful misconduct;

(b) for death or personal injury caused by its negligence or that of its employees or agents or any subcontractor or its employees;

(c) for Losses arising as a result of a breach of Clause 7 (Data Protection);

(d) for breach of obligations of confidentiality (including any breach of Clause 6); or

(e) to the extent that any Applicable Laws preclude or prohibits any exclusion or limitation of liability.

11.2 Subject to Clauses 11.1 and 11.3, the aggregate liability of CSR and KU under or in connection with this Agreement, whether arising in tort (including negligence), for breach of contract or otherwise shall not exceed **AED 157,000.00**

11.3 Subject to Clause 11.1, no party shall be liable to the other party for any indirect or consequential loss or damage, including any direct or indirect loss of business, direct or indirect loss of profits, or anticipated savings or goodwill, whether arising from breach of contract, negligence or otherwise.

PART E – TERM AND TERMINATION

12. TERM

12.1 This Agreement shall commence on the Effective Date and, unless terminated at an earlier date under Clause 13 or otherwise ceasing to have effect (whether as a result of termination, frustration, avoidance or otherwise), shall expire at the end of the Term.

13. TERMINATION

13.1 Each party may, without prejudice to its other rights or remedies and without the need for a judicial order, terminate this Agreement by written notice to the other parties, whether in whole or in part, without the need for a judicial order, if any step, process, application, filing in court, order, proceeding, notice or appointment is taken or made by or in respect of either of the other parties for a moratorium, composition, compromise or arrangement with creditors, administration, liquidation (other than for the purposes of amalgamation or reconstruction), dissolution, receivership (administrative or otherwise), distress or execution, or one of the other parties becomes insolvent or is deemed unable to pay its debts as they fall due, or anything analogous to the foregoing occurs in any applicable jurisdiction.

13.2 Each party may, without prejudice to its other rights or remedies and without the need for a judicial order, terminate this Agreement by written notice to the other parties, in whole or in part, if:

(a) the other party is in material breach of this Agreement (and for this purpose a material breach may be a single event or a series of events taken together) and either:

(i) that breach is not capable of remedy;

f.sh
FAY

(ii) that breach is capable of remedy and the other party has failed to remedy that breach within 30 days after receiving written notice from the terminating party requiring it to do so; or

(iii) the terminating party has given notice under this Clause 13 within the preceding 90 days for the same or a substantially similar breach,

and for this purpose a material breach will be treated as: (A) capable of remedy only if the terminating party can be put in the position that it would have been in but for the breach; and (B) remedied only if the terminating party is put in the position that it would have been in but for the breach;

(b) as a result of a Force Majeure Event, the party who is unable to perform its obligations remains unable to do so two months after the first occurrence of the Force Majeure Event.

13.3 Notwithstanding the above, CSR shall be entitled to terminate this Agreement without cause at any time on giving KU not less than seven days' prior written notice of termination.

13.4 Nothing in this Clause 13 is intended to exclude or limit any rights of termination that the parties may have had at law in the absence of this Clause 13.

14. CONSEQUENCES OF TERMINATION

14.1 Upon termination or expiry of this Agreement, whether in whole or in part, each party shall, on request of the other party, destroy or return to the other parties all Confidential Information of the other parties and shall certify that it has not retained or has destroyed (as applicable) the other parties' Confidential Information save to the extent that information is required to comply with Applicable Laws.

14.2 Any termination or expiry of this Agreement shall not affect any accrued rights or liabilities of a party nor shall it affect the coming into force or continuation in force of any other Clauses and provisions of this Agreement which are expressly or by implication intended to come into force or continue in force on or after termination or expiry of this Agreement, including Clauses 5, 6, 7, 9, 11, 14, 19 and 21.

14.3 Upon termination or expiry of this Agreement, in respect of the Co-Owned IPR, the parties shall use reasonable efforts to enter into a co-ownership agreement to govern each parties' rights and obligations in relation to the Co-Owned IPR as soon as practicably possible. In the event the parties are unable to agree final terms of the co-ownership agreement, Co-Owned IPR will be shared equally between the parties until a formal agreement can be reached on co-ownership.

PART F – MISCELLANEOUS

15. ANNOUNCEMENTS

No party shall:

(a) make or authorise any public or private announcement or communication concerning this Agreement; or

(b) refer to or use any business name or trade mark of the other parties in any promotional communications,

without the prior written consent of the other parties, except where required by Applicable Laws.

f.sh
FAY

16. ASSIGNMENT AND SUBCONTRACTING

16.1 No party may assign, transfer or otherwise dispose of any of its rights or subcontract, transfer or otherwise dispose of any of its obligations under this Agreement without the prior written consent of the other parties.

17. NOTICES

17.1 Any notice or other communication to be given under this Agreement to a party shall be in writing and may delivered or sent personally or by a recognised international air courier delivery service to the party to be served at its address set out below:

(a) to CSR at:
P.O. BOX 45005
Abu Dhabi, UAE

marked for the attention of: Fatima Al Marzouqi

with a copy emailed to legalunit@mubadala.ae

(b) to KU at:

Zone 1, PO Box 127788, Abu Dhabi, UAE

marked for the attention of: Osama Najjar / General Counsel

with a copy emailed to osama.najjar@ku.ac.ae

or at any other address or to any other addressee as it may have notified to the other party in accordance with this Clause 17.

17.2 In proving service of a notice or document, it shall be sufficient in the case of courier, that the envelope containing the notice was properly addressed and handed to the courier.

18. ENTIRE AGREEMENT

18.1 This Agreement (and the documents referred to in it) contains the entire agreement between the parties relating to the transactions contemplated by this Agreement and supersedes all previous agreements between the parties relating to these transactions.

18.2 Each party acknowledges that, in agreeing to enter into this Agreement, it has not relied on any express or implied representation, warranty, collateral contract or other assurance (except those set out in this Agreement and the documents referred to in it) made by or on behalf of the other parties at any time before the date of this Agreement. Each party waives all rights and remedies which, but for this Clause 18.2, might otherwise be available to it in respect of any such representation, warranty, collateral contract or other assurance.

18.3 Nothing in Clause 18.1 or 18.2 limits or excludes any liability for fraud.

19. DISPUTES

19.1 Any Dispute shall be resolved in accordance with this Clause 19.

19.2 In the event of any Dispute, representatives of sufficient seniority to resolve the Dispute on behalf of the Party they represent shall, within 14 calendar days of a written notice from one party to the other

f.sh
FAY

parties (a "**Dispute Notice**"), hold a meeting (a "**Dispute Meeting**") either in person or virtually in an effort to resolve the Dispute. If the Dispute cannot be resolved by the Chief Executive Officers (or other senior representatives of sufficient seniority to resolve the Dispute) within 30 days after the Dispute Notice has been delivered, whether or not a Dispute Meeting has been held, the Dispute shall be resolved in accordance with the remaining provisions of this Clause 19.

19.3 Any Dispute which the parties do not resolve by agreement in writing between the parties within 30 days of the Dispute Notice shall be referred to and finally settled by arbitration in accordance with the rules promulgated by the Abu Dhabi Commercial Conciliation and Arbitration Centre (the **ADCCAC**) (the **Rules**).

19.4 It is hereby agreed that:

(a) the seat of the arbitration shall be the the city of Abu Dhabi;

(b) there shall be three arbitrators, with each party appointing one arbitrator within 15 days after the claimant commences by giving written notice of the arbitration and the third (and presiding) arbitrator selected by two arbitrators so selected within 30 days after their appointment. If two arbitrators cannot agree on the third arbitrator within such 30 day period, the third arbitrator shall be appointed in accordance with the Rules

(c) the language of the arbitration shall be English;

(d) the award shall be in writing and shall set forth in reasonable detail the facts of the Dispute and the reasons for the tribunal's decision

(e) the award in such arbitration shall be final and binding upon the parties and judgment thereon may be entered in any court having jurisdiction for its enforcement.

19.5 This Clause 19 is without prejudice to a party's right to seek interim relief including interim injunctive relief, against the other parties (such as an injunction) through the courts of the Emirate of Abu Dhabi or any other court of competent jurisdiction to prevent the improper use or disclosure of Confidential Information or to otherwise protect its rights or to enforce the obligations of the other party under this Agreement.

20. GENERAL

20.1 No partnership or agency

Nothing in this Agreement shall be deemed to constitute a partnership between the parties, nor constitute a party as the agent of the other parties for any purpose.

20.2 Counterparts

This Agreement may be entered into in any number of counterparts, all of which taken together shall constitute one and the same agreement, and any party may enter into this Agreement by executing a counterpart.

20.3 Waiver

The rights of each party under this Agreement:

(a) may be exercised as often as necessary;

(b) are cumulative and not exclusive of rights or remedies provided by law; and

f.sh
FAY

(c) may be waived only in writing and specifically.

Delay in the exercise or non-exercise of any right is not a waiver of that right.

20.4 Amendments

No amendment of this Agreement shall be binding on the parties unless set out in writing, expressed to amend this Agreement and signed by an authorised representative of each of the parties.

20.5 Severability

The provisions contained in each Clause and paragraph of this Agreement shall be enforceable independently of each of the others and their validity shall not be affected if any of the others is invalid. If any provision is void but would be valid if some part of the provision were deleted, the provision in question shall apply with such modification as may be necessary to make it valid.

20.6 Further assurance

Each party undertakes, at the request and cost and expense of the other parties, to sign all documents and to do all other acts which may be necessary to give full effect to this Agreement.

20.7 Costs

Each party shall pay the costs and expenses incurred by it in connection with the entering into of this Agreement.

20.8 Third Party Rights

A person who is not a party to this Agreement may not enforce any of its terms.

20.9 Language

Any other document provided in connection with this Agreement shall be:

(a) in English; or

(b) accompanied by a certified English translation. In this case, the English translation prevails unless the document is a statutory or other official document.

21. GOVERNING LAW

This Agreement and any non-contractual obligations arising out of or in connection with it shall be governed by and construed in accordance with the laws of the UAE as applicable in the Emirate of Abu Dhabi.

THIS AGREEMENT has been signed on behalf of the parties by their duly authorised representatives on the date which appears on page 1.

f.sh
FAY

SIGNATORIES

Signed by:_____

Full name: Fatima Al Marzouqi

Title: Director – Portfolio Emiratization

For and on behalf of **CSR SPV 1 RSC LTD**

Date of signature: _____

Signed by:_____

Full name: Dr. Ebrahim Al Hajri

Title: SVP Support Service & Director – Continuing Education.

For and on behalf of **KHALIFA UNIVERSITY**

Date of signature: _____

FAY
f.sh

SCHEDULE 1

PROJECT DESCRIPTION

1. DESCRIPTION OF PROJECT

1.1 TITLE: Mubadala Summer Boot Camp 2022

Mubadala and Khalifa University are collaborating to establish a career Boot Camp, a program targeting UAE National high school students who will participate in a series of workshops and lectures. Available for students grades 10 to 12, the aim of the program is to help them learn more about careers in STEM fields and jobs of the future.

The program will take place at the main campus of Khalifa University. Participating students will be required to attend the five-day camp, with the final day running from 9:00 am - 12:00 pm for students to showcase their Capstone Project.

(a) **Venue:** Khalifa University Campus

(b) **Duration:** One week (15th August 2022 to 19th August 2022)

(c) **Timing:** Monday to –Thursday From 10:00am to 3:00pm, and Friday – from 9:00am to 12:00pm

2. PARTIES OBLIGATIONS

CSR shall:

1- Cover the cost of the program with a total of AED 157,000.00
2- Support with the recruitment process of 60 students.
3- Assign one member from Mubadala to act on the judging panel on the program's final day.

KU shall:

1- Develop, run, and manage the registration link
2- Promote the program through the University web page.
3- Plan, manage and develop the interview panel and questions
4- Plan, manage and create the program content
5- Manage the entry exam and share the results with Mubadala.
6- Manage and select the final 60 students based on the program criteria.
7- Manage and delivery of the program for 5 days (15th Aug 2022 to 19th Aug, 2022).

Summer Boot Camp				
Items	Mode of Delivery	No. Students	No. Days	Amount in AED
Faculty /Staff compensation	Face to Face	60	5	**AED 157,000**
Assessment Licenses				
Transportation				
Catering Services				
Protective Equipment/ Items				
Classroom/ Labs/ Auditorium				

FAY

SCHEDULE 2

GOVERNANCE

1. The Relationship Managers for each party as at the Effective Date are as follows:

   (a) for CSR – Fatima Al Marzouqi

for KU

2. Each Relationship Manager will be given the responsibility:

   (a) to represent the appointing party in relation to this Agreement and make appropriate decisions on day-to-day issues;

   (b) to monitor the appointing party's compliance with its obligations under this Agreement; and

   (c) to give and receive notices relating to the day–to–day provision of the Project.

3. Each party shall:

   (a) ensure that its Relationship Manager or his deputy is available for meetings with the other parties' Relationship Managers or deputy upon reasonable notice at reasonable times, it being acknowledged that meetings or telephone calls to discuss urgent matters may be scheduled upon short or no notice;

   (b) promptly notify from time to time any change in its Relationship Manager or deputy to the other parties' Relationship Managers;

   (c) liaise and co-operate and ensure that its Relationship Manager shall liaise and co-operate in good faith with the other parties' Relationship Managers;

   (d) ensure its Relationship Manager or his deputy performs the responsibilities referred to in this Schedule 2; and

   (e) inform each other's Relationship Manager promptly and in writing of any acts or omissions on the part of each other or its employees which prevent or hinder or may prevent or hinder each other from meeting its obligations under this Agreement.

4. The Relationship Managers shall prepare agendas for meetings contemplated by this Schedule 2, which shall be circulated at least three Business Days in advance of any meeting.

5. Neither party shall be bound by any commitments, promises, representations or waivers nor shall be estopped as a result of any actions, representations or conduct within a meeting of the Relationship Managers.

6. Disputes shall be escalated and resolved in accordance with the Dispute Resolution Procedure.

FAY

KU- Mubadala Summer Boot Camp '2022

S.N.	Name	15-Aug	16-Aug	17-Aug	18-Aug	19-Aug
1	Noora Mansoor Ghaziabdulmajid Iskandarani Sarooj					Summer Boot Camp Certificate Distribution
2	Zayed Sultan AlDhanhani	.	.	.		
3	Eman Khalil Alhosani	.	.	.		
4	Mahra Ahmed Alharmi	.	.	.	.	
5	Rayyan Almazrouei	.	.	.	.	
6	Shareefa Husain Almenhali	.	.	.	.	
7	Shahad AlShemeili	.	.	.	.	
8	Shaikha Rashed Alblooshi	.	.	.		
9	Alhnoof Husain Al Menhali	.	.	.	.	
10	Abdulrahman Alsaleem	.	.	.	.	
11	Fatima Khalifa Salem Alshamsi	.	.	.	.	
12	Fatima Abdulla Almazrouei	.	.	.		
13	Fatima Rashed Alnuaimi	.	.	.	.	
14	Mohamed Hamad Gharib Mohamed Aldarmaki					
15	Jalilah Al Falasi	.	.	.	.	
16	Alyazyah Al Ketbi	.	.	.	.	
17	Fatima alhammadi	.	.	.	.	
18	Maryam Mohammad	.	.	.	.	
19	Shaikha Al houqani					
20	Ahmad Mohammed Almehairi	.	.	.	.	
21	Bakheet Alqubaisi	.	.	.	.	
22	Hamad waleed Daiban	.	.	.	.	
23	Afra Saleh Almenhali	.	.	.	.	
24	Hamda Ibraheem Alhammadi	.	.	.	.	
25	Dana Faisal Al hosani	.	.	.	.	
26	Mohamed Al Qubaisi					
27	Shaikha Yousef					
28	Rashed Hamad Al Dhaheri	.	.	.	.	
29	Salem Ahmed Salem Al Shamsi					
30	Alqaseed Almenhali	.	.	.	.	
31	Fatima Ali Khameis	.	.	.	.	
32	Hind Badr Al Shemeili	.	.	.	.	
33	Abdulla Alwaleed Almarzooqi	.	.	.	.	
34	Maitha ali almazrouei	.	.	.	.	
35	Mohamed Matar Al Mehairi	.	.	.	.	
36	Shamma Almarzooqi	.	.	.	.	
37	Talal Makki	.	.	.	.	
38	Budour Alhammadi	.		.		
39	Hamad Yaser Almansoori	.	.	.	.	
40	Hamed Abdulla					
41	Fatima Saeed Al Junaibi	.	.	.	.	
42	Shaima Albalooshi	.	.	.	.	
43	shouq saif alshehhi	.	.	.	.	
44	Amira Alzaabi	.	.	.	.	
45	Roudah Alsaw	.	.	.	.	
46	Zayed Abdulla Omar Abdulla Salem	.	.	.	.	
47	Meera Alqahtani	.	.	.	.	
48	Maha Alozaibi	.	.	.	.	
49	Manea Saeed Mubarak Amer Al Ahbabi	came but left - sick	.	.	.	
50	Rawda Saeed Al Jneibi	.	.	.	.	
51	AlReem Alsuwaidi	.	.	.	.	
52	Fatima Khalid AlMulla	.	.	.	.	
53	Saif Mohammed Alketbi			.		
54	haneen rashed alhmoudi	.	.	.	.	
55	Sara Saeed Al Badi					
56	Ahmed Mohammed Abdulla Hamad Al Nuaimi	.	.	.	.	
57	Hajar abdullah mubarak ali Alkabi	.	.	.	.	
58	Hamdan Ali AlMarzooqi	.	.	.	.	
59	Amna Mohammed Almansoori	.	.	.	.	
60	Shaykha alhammadi		.	.	.	
61	AlAhbabi, Mansour M.	.	.	.		
62	Albreiki, Alghala A.	.	.	.	.	
63	Alkaabi, Alya	.	.	.	.	
64	Shaikha Al Mansoori	.	.	.	.	

Legend:

Present

Absent

KU- Internal notes still present